

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

August 22, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Mr. Collins. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 8, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, South of West College Drive). Jim Flesher, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Donn Edmunds expressed concerns with City fire and police manpower coverage for the proposed area to be annexed. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Resolution determining that the sale of real property owned by the City of Cheyenne, Wyoming would benefit the economic development of the City pursuant to Wyo. Stat. § 15-1-112(b) and authorizing the Mayor to sign a Purchase and Sale Agreement and a Development Agreement with Menard, Inc. for the sale of 23.87 acres of City-owned land platted as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard, Cheyenne, Wyoming). Frank Cole, Cole Shopping Center, spoke in opposition to the City selling the vacant park land, noting uses in the area for recreational purposes and commenting that the proposed purchasing offer amount was not high enough. Barbara Stafford, Friends of Botanic Gardens

Foundation Board, referenced a document (on file with City Clerk's office) submitted earlier in the day to governing body members, and spoke about the assistance provided by the Foundation Board in acquiring release of property use restrictions through the U.S. Dept. of Veterans Affairs, and in support of utilizing funds received from the property sale to upgrade and expand the conservatory at Botanic Gardens. Scott Nuttelman, Menard, Inc., requested support for the proposed sale and discussed Menard's desire to expand its operations to serve the Cheyenne area and the company's development plans and construction season timing issues. Upon inquiry, Mr. Nuttelman provided information on evaluation of other site location options they had researched within the community, and advised the Windmill site provides for the necessary infrastructure for utilities and more general access to the community with room for expansion of other retail businesses. During discussion, Mr. Nuttelman explained they did review the Swan Ranch development area but considered it more of an industrial site, which might be viable for a potential manufacturing and distribution facility, than a commercial retail site; reviewed the location of Menard stores in the region, and potential opportunity to expand into other western states in the future. In response to Mr. Nuttelman's comments involving evaluation of other property sites in the area, Mr. Cole advised that he was contacted by Menard's but at the time of the inquiry he did not have any property available for retail development in the acreage size Menard's desired. Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Ms. Ash. Mr. Valdez moved to postpone to Sept. 12, 2011, seconded by Mr. Pierson. Mr. Nuttelman suggested approving the sale with conditions to resolve any concerns the Council may have, and advised a postponement may affect the company's time frame to begin construction. It was noted the recommendation to postpone made at Finance Committee was to allow time for review and clarification of confidential information provided by the City Attorney. Upon inquiry, Dan White, City Attorney, provided information on the attorney-client confidential memorandum he had issued to governing body members involving a potential property interest claim in the parcel involving the Laramie County Commissioners. He explained since providing the memorandum to Council members, the County Commissioners have asserted a property interest claim and explained this issue needs to be resolved prior to acting on the resolution. Discussion included the purpose of postponement, which would allow time to further review the City Attorney's memorandum and to provide time for the County Commissioners to meet to make a final decision on their proposed interest in the property. Mayor Kaysen advised, pursuant to communication with County Commission Chair Diane Humphrey, that the Commissioners have not made a final decision yet on their claim of interest in the property and that it is still under review, and stated the Commissioners plan to take this up at their Sept. 6th meeting. Mayor Kaysen recognized County Commissioner Troy Thompson in attendance at the meeting, who confirmed the information shared by the Mayor was correct. Motion to postpone carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Ash voting "no".

[CA] Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, south of West College Drive) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the City of Cheyenne, a jurisdiction within Laramie County, Wyoming, to participate in a Multi-jurisdictional Hazard Mitigation Plan (2007-2010 1% Sales Tax) -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution designating the Director of Purchasing as agent for the City of Cheyenne for the purpose of organizing and holding a surplus municipal property auction at a time convenient for the City -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board to accomplish the West Pershing Boulevard Sewer Main Project from Pioneer Avenue to Interstate 25 -- referred to Finance Committee (sponsor - Dr. Rinne).

Preliminary Plat for Sundance Ridge II, a replat of Lots 1-6, Block One and Lots 1-6, Block Two, Sundance Ridge I, Cheyenne, Wyoming (located north of Storey Boulevard, on either side of Sycamore Road). Dr. Rinne declared a conflict of interest (property owner in near vicinity) and vacated Council Chambers. Reporting for Public Services Committee, Ms. Ash moved to acknowledge receipt with staff recommendations #1 through 3, seconded by Ms. Broyles. Comment followed on discussion at Public Services Committee regarding connectivity and traffic flow patterns regarding potential future development of the surrounding area, and subsequent information that was received indicating hammerheads on each end was the best option for now. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Dr. Rinne returned to Council Chambers.

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Juvenile Services Joint Powers Board to provide electronic monitoring services, intensive mentoring support, parenting education and support, and alcohol education and assessments by the Office of Youth Alternatives. Motion (per Consent Agenda) carried (revenue to the City in the amount of \$46,563.00). (#5721)

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Juvenile Services Joint Powers Board for a Weekender Community Service Program to be conducted by the Office of Youth Alternatives. Motion (per Consent Agenda) carried (revenue to the City in the amount of \$22,555.00). (#5722)

[CA] Agreement between the City of Cheyenne and Laramie County, Wyoming for a dually-commissioned Juvenile Compliance and Diversion Officer to assist with alternatives to juvenile detention, and improve monitoring of juvenile detention facilities. Motion (per Consent Agenda) carried (revenue to the City in the amount of \$39,878.00). (#5723)

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services. Motion (per Consent Agenda) carried (amount not to exceed of \$50,000.00). (#5724)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department and the Cheyenne Regional Airport Board for law enforcement services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for general education students and students with disabilities for the 2011 - 2012 school year -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming for juvenile probation services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Transit Division, and NextMedia Outdoor, Inc., for the purchase of advertising space on Cheyenne Transit buses -- referred to Finance Committee.

[CA] Amendment No.1 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement term for an additional six months -- referred to Finance Committee

[CA] Consideration of Bid #M-2-12 for a contract between the City of Cheyenne and Reiman Corporation, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IV Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$269,214.30). (#5725)

[CA] Consideration of Bid #M-18-12 for a contract between the City of Cheyenne and Simon Contractors, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IIIb, Part 2, Union Pacific Railroad Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$240,051.00). (#5726)

[CA] Consideration of Bid #R-1-12 for furnishing and installing one new wireless bus lift with four jack stands for the City of Cheyenne Transit Division -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-12 for furnishing and installing four steel compaction wheels on a caterpillar at the City Landfill -- referred to Finance Committee.

Announcement was made that due to the Labor Day holiday on Monday, September 5, 2011, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 6, 2011 at 11:00 a.m. and Public Services Committee will meet Wednesday, September 7, 2011 at Noon.

Announcement was made of a Public Hearing to be held September 12, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of location for a retail liquor license application filed with the City Clerk's Office for Cloud 9, Inc. d/b/a Cloud 9 Liquorland, 1958 Dell Range Boulevard (Suite C) Cheyenne, Wyoming.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:41 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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